

IN THE [COURT HAVING JURISDICTION IN THIS MATTER – CRIMINAL, CIRCUIT OR GENERAL SESSIONS COURT; CONFIRM FROM YOUR OWN RECORD] OF [COUNTY – CONFIRM FROM YOUR OWN RECORD] COUNTY, STATE OF TENNESSEE

STATE OF TENNESSEE,
Plaintiff,

v.

JOHN DOE,
Petitioner.

DOCKET NO.: [TO BE CONFIRMED]

PETITION FOR EXPUNCTION WHERE THE PERSON WAS ARRESTED OR CHARGED DUE TO MISTAKEN IDENTITY, PURSUANT TO T.C.A. § 40-32-106(a)(1)(H)

STATUTORY AUTHORITY

T.C.A. § 40-32-106(a)(1)(H) – Mistaken identity is one of the enumerated non-conviction grounds, and relief runs on the same free petition vehicle as the other non-conviction grounds, with an added factual showing that the person was arrested or charged because of a case of mistaken identity.

T.C.A. § 40-32-101 – The chapter-wide definitions section, which defines mistaken identity for the whole chapter.

T.C.A. § 40-32-102(d) – The court forwards the order to the Tennessee Bureau of Investigation within 30 days of entry.

T.C.A. § 40-32-110 – Expunction restores the person, in contemplation of law, to the status occupied before arrest, indictment, information, trial and conviction.

I. JURISDICTION AND VENUE

1. This Court has jurisdiction over this matter as the court having jurisdiction in the previous action in Sample County (synthetic sample venue), State of Tennessee, where the proceedings occurred.

2. Venue is proper in this Court because the criminal proceedings that are the subject of this petition occurred in Sample County (synthetic sample venue), State of Tennessee.

II. PARTIES

3. Petitioner is JOHN DOE, whose address is 1000 Sample Street, Nashville, TN 37203.

4. Plaintiff is the State of Tennessee.

III. FACTS AND CASE HISTORY

5. On or about 01/05/2024, Petitioner was charged with Charge recorded against Petitioner's name in a case of mistaken identity (synthetic sample charge) by Sample City Police Department (synthetic).

6. The matter was assigned Docket Number [TO BE CONFIRMED].

7. On 01/30/2024, the matter was resolved with the following disposition: Charge resolved without conviction; Petitioner states Petitioner was not the person arrested or charged (synthetic sample disposition).

8. The offense grade was: Misdemeanour (synthetic).

IV. ELIGIBILITY ALLEGATIONS

9. Petitioner may be eligible for expunction on the following basis: expunction under T.C.A. § 40-32-106(a)(1)(H) (Petitioner states Petitioner was arrested or charged because of a case of mistaken identity).

10. Petitioner states Petitioner was arrested or charged because of a case of mistaken identity, and gives Petitioner's own account of the circumstances (synthetic sample answer).

11. Petitioner encloses the documents Petitioner relies on to show the circumstances. Petitioner does not ask this Court to accept any particular standard of proof; Petitioner presents Petitioner's own account and records (synthetic sample answer).

12. Petitioner requests that this Court consider directing that the matter be treated as expedited. Petitioner makes no assertion about what the current section requires of this Court in that respect (synthetic sample answer).

13. State control number: [STATE CONTROL NUMBER – READ FROM YOUR OWN CRIMINAL HISTORY AND ENTER IT HERE BEFORE FILING].

IMPORTANT: Petitioner may be eligible; this document does not guarantee eligibility or a court outcome.

V. REQUESTED RELIEF

WHEREFORE, Petitioner respectfully requests that this Court:

(a) Grant this Petition and enter an Order directing the expunction of all public records of the charge on which the arrest was made in a case of mistaken identity in the above-captioned matter;

(b) Direct all criminal justice agencies having custody of such records to remove and destroy all records relating to this matter; and

(c) Grant such other and further relief as this Court deems just and appropriate.

VI. VERIFICATION

I, JOHN DOE, state that the statements made in this petition are true and correct to the best of my knowledge, information, and belief.

JOHN DOE

1000 Sample Street, Nashville, TN 37203

Date: _____

[NOTE: Date of birth and Social Security Number should be added by petitioner if required by the applicable form or local court rules.]

ATTACHMENTS

Attachments submitted with this petition:

- [ANY DOCUMENT THE PARTICIPANT CHOOSES TO FILE IN SUPPORT – PARTICIPANT ENCLOSES COPIES ONLY]

Prepared by petitioner using LegalEase RCAP. This is not an official court form.